Satish Kumar Siwas vs Govt Nct Of Delhi & Ors on 3 October, 2013

Author: G.S.Sistani

Bench: G.S.Sistani

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ W.P.(CRL) 756/2013

% Order dated 03.10.2013

SATISH KUMAR SIWAS ..... Petitioner
Through: Mr.Ajay Tiwari, Advocate

versus

GOVT NCT OF DELHI & ORS ..... Respondent
Through: Mr.Rajpal Kasana & Mr.Nagendra Kasana, Advocate for respondent no.3
Mr.Dayan Krishnan, ASC along with Mr.Nikhil A. Menon, Advocate along with S.I. Ratan Singh, P.S. Saket, and S.I. B.D. Meena, P.S. Sangam Vihar.

CORAM:
HON'BLE MR. JUSTICE G.S.SISTANI

G.S.SISTANI, J (ORAL)

1. Present petition has been filed by the petitioner with the following prayers:

> (a) pass an appropriate writ, orders and directions to the Respondents no.1 and 2 to take immediate steps / action against the erring officials.
>
> (b) pass a direction to the police to take appropriate action against the Respondent no.3 for playing fraud and cheating with the process of law and take into the custody of respondent no.3 immediately.
>
> (c) pass the direction to the respondent no.1 to provide PSO to the petitioner considering the danger of life and liberty of petitioner and his family members."

2. Counsel for the petitioner has drawn attention of the court to an order dated 25.3.2013. Concluding portion of the order dated 25.3.2013 reads as under:

> "Accordingly as per the dictum of Hon ble Supreme Court in the case titled as Dayal Singh & Ors. Versus State of Uttaranchal wherein it has been held that „We hold, declare and direct that it shall be appropriate exercise of jurisdiction as well as ensuring just and fair investigation and trial that courts return a specific finding in such cases, upon recording of reasons as to deliberate dereliction of duty, designedly deffective investigation, intentional acts of omission and commission prejudicial to the case of the prosecution, in breach of professional standards and investigative requirements of law, during the course of the investigation by the investigating agency, expert witnesses and even the witnesses cited by the prosecution. Further, the Courts would be fully justified in directing the disciplinary authorities to take appropriate disciplinary or other action in accordance with law, whether such officer, expert or employee witness, is in service or has since retired, I hereby direct Director General, Prison to take appropriate disciplinary action against the erring officials to avoid any such practice in future. Copy of this order be also sent to Commissioner of Police and Home Secretary, Govt. of NCT of Delhi for their kind information and appropriate action."

3. Counsel for the petitioner also submits that despite a direction having been issued to the Director General, Prison to take appropriate disciplinary actions against the erring officials, no action has been initiated. Counsel, thus prays that a direction be issued by this court. Another prayer made by counsel for the petitioner is for providing protection to the petitioner and his family members.

4. As far as the prayer for providing protection is concerned, counsel for the respondent no.3 has drawn attention of the Court to an order dated 15.9.2012 passed by the learned trial court, wherein this prayer of the petitioner has already been allowed.

5. With regard to the direction issued to the Director General, Prison, counsel for the State submits that the Director General, Prison, has looked into the matter and he is satisfied with the explanation rendered by the Superintendent, Jail.

6. Counsel for the State also submits that the status report will be placed before the trial court, to enable the trial court to consider the same within two weeks from today.

7. In the order dated 18.7.2013 it was noticed that the respondent no.3 was released from the judicial custody by the Jail Superintendent without any order from the Court and this matter was under consideration of the learned Metropolitan Magistrate and the next date fixed in the matter was 20.7.2013. On the following date it was noticed by the Court that although the bail of respondent no.3 was cancelled on 27.7.2013, respondent no.3 has not surrendered. Counsel for respondent no.3 had made a statement that his client would surrender shortly. Similar statement was made on 16.9.2013 and 30.9.2013 when the matter was taken up by this court.

8. Respondent no.3 is present in court today and submits that his application for grant of bail has not been considered by the trial court.

9. Counsel for the respondent no.3 submits that this is primarily a civil dispute and only amount of approximately Rs.5.0 lacs is involved, however, no civil proceedings have been initiated by the petitioner and petitioner is only using arm-twisting tactics against his client. Counsel also submits that to show his bona fide respondent no. 3 is willing to deposit the amount of Rs.5.0 lacs in court, if so directed within a reasonable period of time.

10. Mr.Kasana, counsel for respondent no.3 also submits that respondent no.3 will move a bail application and also surrender before the trial court, if necessary.

11. In view of the statement made by counsel for the State, no further orders are required to be passed. As prayed, the present petition stands disposed of, in above terms. DASTI.

G.S.SISTANI, J OCTOBER 03, 2013 ssn